

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
RABIN NICKENS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
BARRIONUEVO, Tax # 945410, POLICE OFFICER
JACQUES, POLICE OFFICER ABADIA, POLICE
OFFICER BAIZAN, POLICE OFFICER RICHARDSON,
and POLICE OFFICERS JOHN DOES #1-10 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 31, 2013

Yours, etc. 

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: CITY OF NEW YORK, New York City Law Department, 100 Church Street, NY, NY
10007

POLICE OFFICER BARRIONUEVO, Tax # 945410, Transit District #3, 145 Street/St. Nicholas, NY, NY

POLICE OFFICER JACQUES, Transit District # 4, Union Square/4th Avenue, NY, NY

POLICE OFFICER ABADIA, Transit District # 4, Union Square/4th Avenue, NY, NY

POLICE OFFICER BAIZAN, Transit District # 4, Union Square/4th Avenue, NY, NY

POLICE OFFICER RICHARDSON, Transit District # 4, Union Square/4th Avenue, NY, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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RABIN NICKENS,

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-against-

INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
BARRIONUEVO, Tax # 945410, POLICE OFFICER
JACQUES, POLICE OFFICER ABADIA, POLICE
OFFICER BAIZAN, POLICE OFFICER RICHARDSON,
and POLICE OFFICERS JOHN DOES #1-10 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff, RABIN NICKENS, by her attorneys, Jacobs & Hazan, LLP, as and for her
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 2, 2012, at approximately 7:00 a.m., plaintiff, Rabin Nickens, while lawfully sitting on a #7 subway train inside of Grand Central Station, New York, New York, was subject to an unlawful assault, battery, false imprisonment and false arrest, by the defendant New York City police officers. Thereafter, plaintiff was maliciously prosecuted by the defendant police officers. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully searched, confined, and caused the unjustifiable arrest, prosecution, and assault of plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff RABIN NICKENS is a resident of the State of New York.
3. Police Officer BARRIONUEVO, Tax # 945410, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Police Officer BARRIONUEVO, Tax # 945410, is and was at all times relevant herein, assigned to the Transit Bureau.
5. Police Officer BARRIONUEVO, Tax # 945410, is being sued in his individual and official capacity.
6. Police Officer JACQUES is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Police Officer JACQUES, is and was at all times relevant herein, assigned to the Transit Bureau.
8. Police Officer JACQUES, is being sued in his individual and official capacity.
9. Police Officer ABADIA is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. Police Officer ABADIA, is and was at all times relevant herein, assigned to the Transit Bureau.
11. Police Officer ABADIA, is being sued in his individual and official capacity.
12. Police Officer BAIZAN is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
13. Police Officer BAIZAN, is and was at all times relevant herein, assigned to the Transit Bureau.
14. Police Officer BAIZAN, is being sued in his individual and official capacity.
15. Police Officer RICHARDSON is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
16. Police Officer RICHARDSON, is and was at all times relevant herein, assigned to the Transit Bureau.
17. Police Officer RICHARDSON, is being sued in his individual and official capacity.

18. New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

21. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

22. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

23. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

24. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

25. The CITY OF NEW YORK held a hearing pursuant to 50-h of the general municipal law on or about February 20, 2013.

26. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

27. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

28. On October 2, 2012, at approximately 7:00 a.m., plaintiff, Rabin Nickens was lawfully riding the #7 subway train.

29. Plaintiff, who was a first grade teacher at P.S. 290, was commuting to her school located in Queens, NY that morning.

30. Suddenly, when the # 7 subway train pulled into Grand Central station, the defendant police officers approached plaintiff without reasonable suspicion, probable cause, or any legal justification, and told her that she needed to exit the train with them.

31. Plaintiff explained to the defendant police officers that she was on her way to work, and asked the defendant police officers why she needed to get off of the train.

32. Then, without provocation or legal justification, the defendant police officers grabbed plaintiff by her right arm and screamed "Get off of the train."

33. Plaintiff complied with the defendant police officers unlawful order and exited the train with the defendant police officers.

34. At no time did plaintiff violate any law, commit any crime or violate the law in any way.

35. Defendants did not have any objective factual basis to believe plaintiff committed a crime or violated the law in any way.

36. Nevertheless, plaintiff was unlawfully arrested and handcuffed by the defendants without probable cause or reasonable justification.

37. At no time did plaintiff resist arrest in anyway.

38. After plaintiff was handcuffed on the subway platform, the defendant police officers punched her in the back and neck several times, and pushed her face and body forcefully into the wall causing plaintiff to suffer serious physical injuries, including but not limited to a torn labrum in her left shoulder.

39. Further, the defendant police officers handcuffed plaintiff excessively tight, which caused plaintiff to suffer serious physical injuries, including but not limited to bilateral nerve damage in both of her wrists.

40. Plaintiff told the defendant police officers that the handcuffs were too tight and were hurting her, but the officers ignored her complaints of pain.

41. Thereafter, plaintiff was unlawfully transported to the Transit District #4 precinct located inside of the Union Square subway station.

42. At approximately 10:00 a.m., on October 2, 2012, after approximately two (2) hours in police custody, plaintiff was unlawfully given two summonses and was released from the precinct.

43. The summonses contained false and fabricated allegations by the defendant police officers against plaintiff.

44. When plaintiff left the Transit District #4 precinct in Union Square, she required the assistance of two pedestrians to get upstairs.

45. The two pedestrians helped plaintiff into a cab that transported her to Beth Israel Hospital, where she received medical attention for her injuries, including but not limited to injuries to her wrists, shoulders and back.

46. As a result of the injuries inflicted against plaintiff by the defendant police officers, she was forced to miss approximately one (1) month of work.

47. Further, plaintiff was forced to retain a criminal defense attorney to represent her for \$1,000.

48. As a result of the injuries inflicted against plaintiff by the defendant police officers, she was forced to seek additional medical treatment with several medical providers, including but not limited to an orthopedist and a neurologist.

49. Thereafter, on December 6, 2012, plaintiff appeared in Court and one of the summonses was dismissed because it was legally insufficient.

50. Thereafter, on January 8, 2013, plaintiff appeared in Court and the other summons was dismissed.

51. The unlawful search, false arrest, false imprisonment, malicious prosecution, assault, and battery of plaintiff by the individually named defendants caused plaintiff to sustain serious physical, psychological and emotional trauma.

52. The injuries that plaintiff sustained as a result of the false arrest, assault, battery, and excessive force used by the defendant police officers during her arrest are of a severe and permanent nature, including but not limited to injuries to her right and left shoulders, right and left wrists, right and left hands, neck and back.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, assaulted, battered, and falsely arrested, imprisoned and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

56. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

59. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Failure to Intervene

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

63. Defendants failed to intervene to prevent the unlawful conduct described herein.

64. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

FIFTH CAUSE OF ACTION

Malicious Prosecution

68. Plaintiffs repeat and reallege paragraphs 1 through 67 as if fully set forth herein.

69. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

70. Defendants commenced and continued a criminal proceeding against plaintiff.

71. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

72. The prosecution and criminal proceedings terminated in plaintiffs' favor on the aforementioned dates.

73. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

74. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Negligence

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. Defendants owed a duty of care to plaintiff.

78. Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, illegally searching, maliciously prosecuting, and assaulting and battering plaintiff.

79. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

80. All of the foregoing occurred without any fault or provocation by plaintiff.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

82. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Rabin Nickens. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

84. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

85. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Unlawful Stop

86. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. The conduct of defendants in unlawfully stopping and frisking plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

88. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

89. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

90. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional and statutory rights under the New York State law.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Assault

93. Plaintiff repeats and realleges paragraphs 1 through 92 as if fully set forth herein.

94. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

95. Defendants were at all times an agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

TENTH CAUSE OF ACTION

Battery

97. Plaintiff repeats and realleges paragraphs 1 through 96 as if fully set forth herein.

98. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

99. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

100. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

ELEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

101. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length herein.

102. The use of excessive force by defendants in striking and pushing plaintiff into the wall, as well as handcuffing plaintiff excessively tight was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

104. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

105. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Rabin Nickens demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 31, 2013

By: _____


STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: CITY OF NEW YORK, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER BARRIONUEVO, Tax # 945410, Transit District #3, 145 Street/St. Nicholas, NY, NY
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POLICE OFFICER BAIZAN, Transit District # 4, Union Square/4th Avenue, NY, NY
POLICE OFFICER RICHARDSON, Transit District # 4, Union Square/4th Avenue, NY, NY

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
December 31, 2013



STUART E. JACOBS